

	)	
Roger Waterloo <i>d/b/a</i> EcoBamboo,	)	
<i>Complainant,</i>	)	
	)	
v.	)	
	)	
	)	DOCKET NO. 25-26
	)	
Marine Shipp Fast Ltd. d/b/a Ship4WD	)	
<i>Respondent.</i>	)	
	)	

Respondent Marine Shipp Fast Ltd. d/b/a Ship4WD (“Ship4WD” or “Respondent”) submits this reply to Complainant Roger Waterloo d/b/a EcoBamboo’s (“EcoBamboo” or “Complainant”) Third Motion for Relief and Procedural Clarification (“Motion”).

Much of the Motion appears to be based on an imperfect understanding of the procedural regulations of the Federal Maritime Commission (“FMC” or “Commission”). Recognizing that Complainant is acting *pro se*, Respondent has exercised and will continue to exercise restraint in responding to Complainant’s cumulative, repetitive, and often inappropriate filings. Accordingly, this brief response is limited to correcting and/or clarifying several apparent misconceptions reflected in the Motion.

II. ARGUMENT

A. Respondent Is Represented By Counsel

The Motion, and Complainant's insistence on attempting to communicate directly with Respondent, indicates Complainant may be unclear as to the status of Respondent's legal representation. As explained below, there should be no confusion.

The undersigned entered formal notices of appearance as counsel for Respondent in accordance with FMC regulations on September 16, 2025. Accordingly, the undersigned are counsel of record for Respondent in this proceeding. Complainant was served with the formal notices of appearance in accordance with FMC regulations, and a record of the notices of appearance are also accessible via the FMC's docket database. In her November 3, 2025, email message to Complainant, Roni Yustman advised that "[m]oving forward, please continue all communication on this matter through Cozen." Complainant has ignored that request. Since Complainant is not counsel, he is not required to communicate solely through counsel as an attorney would be. However, Complainant's failure to abide by this request and his repeated communications with an entity not party to this proceeding are frustrating. We hereby reiterate, for the record, that all communications regarding this proceeding should be directed to undersigned counsel only, and not to Respondent and/or its parent company.

B. Respondent's Response To Complainant's Overture Was Fully Authorized

On October 29, 2025, Complainant sent a message to the undersigned, inviting discussions regarding what Complainant termed an "informal resolution opportunity." Respondent interpreted this as an invitation to engage in settlement discussions. Counsel for Respondent conveyed this proposal to Respondent, as required, and was directed to reject the overture. Complainant's suggestion that the timeliness of the response means that Respondent was not fully informed of or aware of the invitation is baseless and false.

C. Respondent Is In Compliance With Procedural Regulations

Complainant's continued argument that Respondent is not in compliance with the Commission's regulations is without merit.

As Respondent has previously explained, the complaint initiating this proceeding was received by the Commission on September 2, 2025 and served by the Commission on September 9, 2025. An answer or motion to dismiss was due 25 days thereafter, i.e., on October 4, 2025. 46 C.F.R. §502.62(b)(1).¹ October 4 was a Saturday. If the last day of the time period is a Saturday, Sunday or holiday, the time period continues until the next day that is not a Saturday, Sunday or holiday. 46 C.F.R. §502.101. Therefore, Respondent's answer or other responsive pleading was due on Monday, October 6. Respondent's cross-motion to dismiss was timely filed/served on October 6.

On October 13, 2025, Complainant served a supplemental exhibit to the complaint. Complainant has since filed additional exhibits/pleadings. Respondent has chosen not to complicate the docket by responding to each improper and/or repetitive pleading filed by Complainant, particularly in light of the ongoing federal government shutdown, which has prevented the Presiding Officer from responding to any one of Complainant's numerous repetitive pleadings. However, Respondent's decision to exercise restraint does not represent non-compliance with regulations, as Respondent has filed the one responsive pleading – the cross-motion to dismiss – required of it.

D. Respondent Is Not Engaged In Dilatory Tactics

Contrary to the suggestions contained in the Motion, Respondent is not engaged in dilatory tactics.

¹ Computation of time periods begins on the day following the act that triggers the time period. 46 C.F.R. §502.101.

Under the Commission's regulations and precedent, a motion to dismiss is an appropriate response to a complaint. Respondent timely filed such a motion. If the motion is denied, Respondent is required to file an answer within ten (10) days. 46 C.F.R. § 502.62(b)(1). The filing of the answer triggers the obligations to make initial disclosures (46 C.F.R. § 502.141(b)), to consult with the Commission's Office of Consumer Affairs and Dispute Resolution Services (46 C.F.R. § 502.64), and to confer on a discovery schedule (46 C.F.R. § 502.141(h)). These obligations have yet to attach in this proceeding. Indeed, any action in this proceeding prior to the issuance of a decision on Respondent's cross-motion to dismiss is potentially unnecessary and wasteful. Respondent has not failed to take, in a timely manner, any actions required of it.

E. ZIM is Not A Party To This Proceeding

As the Motion notes, ZIM is the parent company of ship4WD. However, the complaint in this proceeding does not name ZIM as a respondent or make any allegations against ZIM. Accordingly, ZIM is not a party to this proceeding and it is inappropriate for Complainant to correspond with ZIM. Respondent reiterates its request that all communications regarding this matter be directed solely to undersigned counsel.

F. Respondent Reserves The Right To Seek Attorneys' Fees

The Commission may award reasonable attorneys' fees to the prevailing party in any complaint proceeding. 46 C.F.R. § 502.254. Respondent hereby places both Complainant and the Presiding Officer on notice that if the cross-motion to dismiss is granted and that dismissal becomes final, Respondent will be seeking attorneys' fees. Such fees will necessarily reflect the

additional time spent reviewing and responding to Complainant's numerous filings.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Wayne R. Rohde". The signature is fluid and cursive, with the first name "Wayne" and last name "Rohde" clearly distinguishable.

Wayne R. Rohde
Rachel Schwartz
COZEN O'CONNOR
2001 M St., NW
Suite 500
Washington, DC 20036
(202) 463-2507

Dated: November 13, 2025

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 13th day of November, the foregoing Respondent's Reply to Complainant's Third Motion for Relief and Procedural Clarification was served via electronic mail on:

Roger Waterloo dba EcoBamboo, *Complainant*
rodebos@hotmail.com

A handwritten signature in black ink, appearing to read "Wayne R. Rohde". The signature is written in a cursive, flowing style.

Wayne R. Rohde